

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTHEAST OF AND ADJACENT TO THE INTERSECTION OF DELL RANGE BOULEVARD AND WHITNEY ROAD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) That PKT Development, LLC, owners of:

A parcel of land located in the southwest one-quarter of Section 24, Township 14 North Range 66 West of the 6th Principal Meridian; being more particularly described as follows:

Commencing at the City of Cheyenne control point “Dell Range” thence N74°53'24”E a distance of 874.14 feet to a point on the northerly right of way line of Dell Range Boulevard being the true point of beginning, thence along north right of way line of Dell Range Boulevard N89°44'57”W a distance of 1748.53 feet to a point; thence N00°26'28”E a distance of 865.33 feet to a point; thence S56°16'47”E a distance of 187.03 feet to a point; thence S56°14'01”E a distance of 252.18 feet to a point; thence S56°12'59”E a distance of 295.28 feet to a point; thence S56°13'08”E a distance of 303.74 feet to a point; thence S89°50'57”E a distance of 312.23 to a point; thence S89°52'00”E a distance of 318.17 feet to a point; thence S60°00'18”E a distance of 345.22 feet; thence S22°34'36”W distance of 131.84 to the point of beginning.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof, along with the adjacent Dell Range right-of-way, described as follows:

Commencing at the City of Cheyenne control point “Dell Range” thence N74°53'24”E a distance of 874.14 feet to a point on the northerly right of way line of Dell Range Boulevard being the true point of beginning thence S00°15'03”W a distance of 93.00 feet to a point; thence S89°44'57”E a distance of 1748.12 feet to a point; thence N00°00'00”E a distance of 93.00 feet to a point; thence N89°44'57”W distance of 1748.53 feet to the point of beginning; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MU Mixed Use and LR Low Density Residential by the Laramie County Commissioners; and

- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

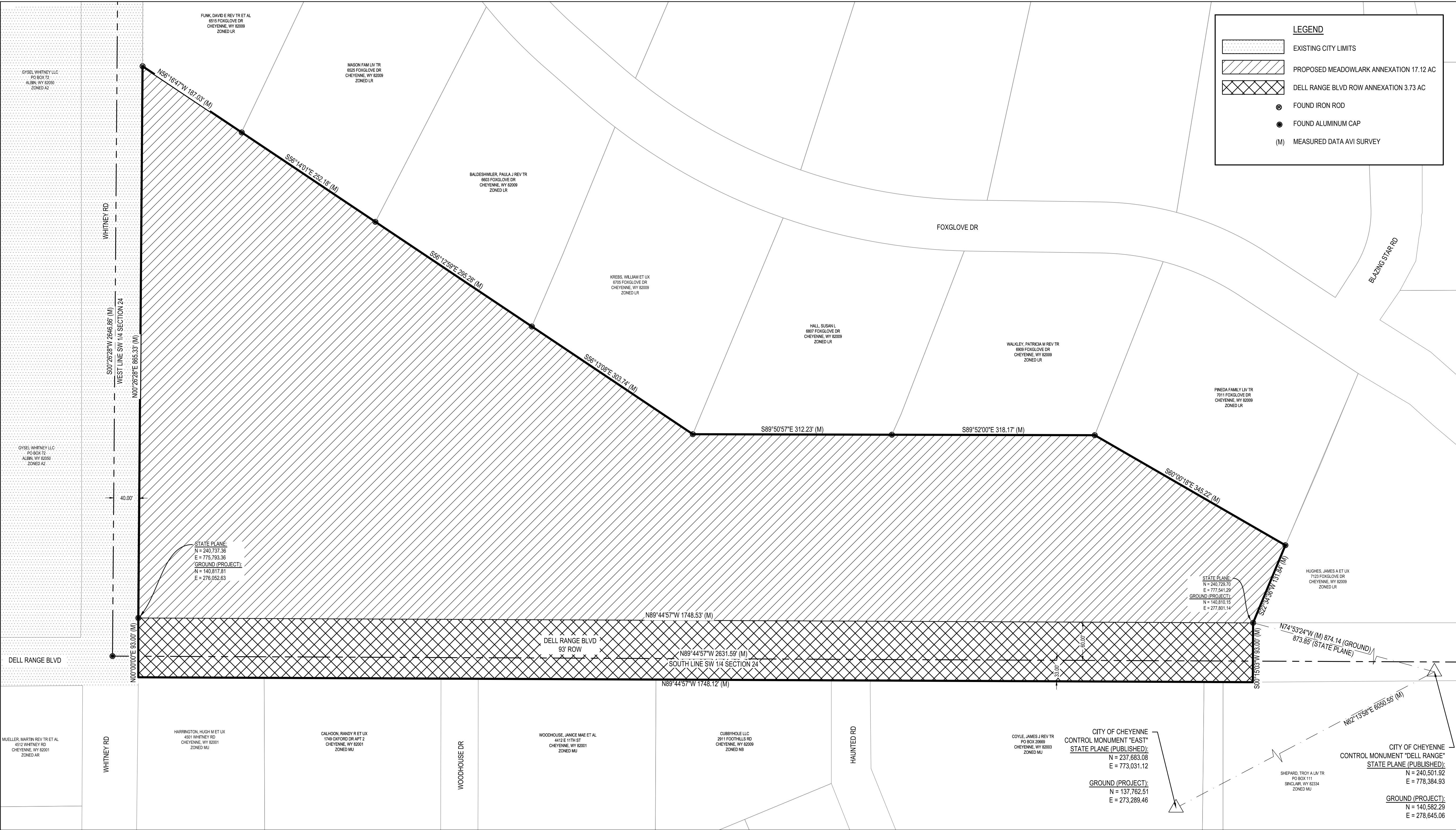
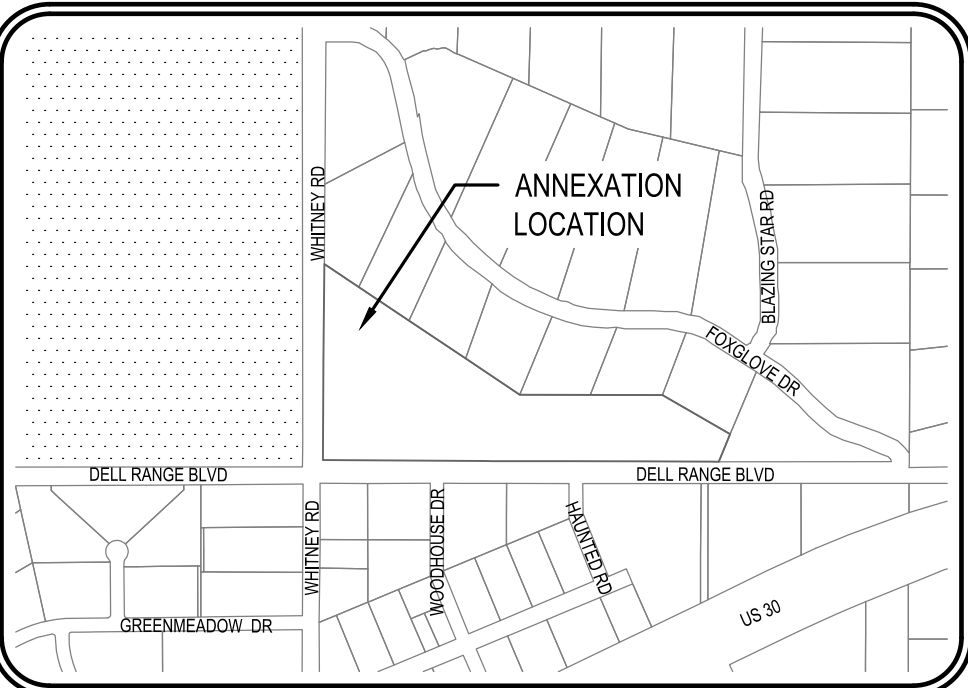
PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____

C:\alwood\temp\ch\chubab_8320\4469 ANNEXATION.dwg Jul 20, 2021 11:07am jdesclerth



LEGAL DESCRIPTION

MEADOWLARK ESTATES 2ND FILING ANNEXATION DESCRIPTION:
THE FOLLOWING IS A DESCRIPTION FOR A PARCEL OF LAND LOCATED IN THE SOUTHWEST ONE-QUARTER OF SECTION 24 AND NORTHWEST ONE-QUARTER OF SECTION 25, TOWNSHIP 14 NORTH RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN.

COMMENCING AT THE CITY OF CHEYENNE CONTROL POINT "DELL RANGE," THENCE N74°53'24"W A DISTANCE OF 874.14 FEET TO A POINT ON THE NORTHERLY RIGHT OF WAY LINE OF DELL RANGE BOULEVARD BEING THE TRUE POINT OF BEGINNING.

THENCE S00°15'03"W A DISTANCE OF 93.00 FEET TO A POINT ON THE SOUTH RIGHT OF WAY LINE OF DELL RANGE BOULEVARD; THENCE ALONG SAID SOUTH RIGHT OF WAY S89°44'57"E A DISTANCE OF 1748.12 FEET TO A POINT; THENCE LEAVING SAID SOUTH RIGHT OF WAY LINE N00°00'00"E A DISTANCE OF 93.00 FEET TO A POINT ON THE NORTH RIGHT OF WAY LINE OF DELL RANGE BOULEVARD AND THE EASTERLY RIGHT OF WAY LINE OF WHITNEY ROAD; THENCE ALONG SAID EASTERLY RIGHT OF WAY OF WHITNEY ROAD N00°26'28"E A DISTANCE OF 865.33 FEET TO A POINT; THENCE LEAVING SAID EASTERLY RIGHT OF WAY AND CONTINUING ALONG THE FOLLOWING COURSES AND DISTANCES S56°16'47"E A DISTANCE OF 187.03 FEET TO A POINT; THENCE S56°14'01"E A DISTANCE OF 252.18 FEET TO A POINT; THENCE S56°12'59"E A DISTANCE OF 295.28 FEET TO A POINT; THENCE S56°13'08"E A DISTANCE OF 303.74 FEET TO A POINT; THENCE S89°50'57"E A DISTANCE OF 312.23 TO A POINT; THENCE S89°52'00"E A DISTANCE OF 318.17 FEET TO A POINT; THENCE S60°00'18"E A DISTANCE OF 345.22 FEET; THENCE S22°34'36"W DISTANCE OF 131.84 TO THE POINT OF BEGINNING.

SAID PARCEL CONTAINS 20.85 ACRES MORE OR LESS.

DELL RANGE BLVD ROW:
COMMENCING AT THE CITY OF CHEYENNE CONTROL POINT "DELL RANGE," THENCE N74°53'24"E A DISTANCE OF 874.14 FEET TO A POINT ON THE NORTHERLY RIGHT OF WAY LINE OF DELL RANGE BOULEVARD BEING THE TRUE POINT OF BEGINNING.

THENCE S00°15'03"W A DISTANCE OF 93.00 FEET TO A POINT; THENCE S89°44'57"E A DISTANCE OF 1748.12 FEET TO A POINT; THENCE N00°00'00"E A DISTANCE OF 93.00 FEET TO A POINT; THENCE N89°44'57"W DISTANCE OF 1748.53 FEET TO THE POINT OF BEGINNING.

SAID PARCEL CONTAINS 3.73 ACRES MORE OR LESS.

ANNEXATION NOTES:

MEADOWLARK ESTATES AREA:
TOTAL PERIMETER = 4,789.54'
LENGTH OF CITY LIMIT ABUTTING = 865.33'
RATIO = 18.18%
TOTAL AREA = 17.12 ACRES

DELL RANGE ROW AREA:
TOTAL PERIMETER = 3,682.65'
LENGTH OF CITY LIMIT ABUTTING = 93'
RATIO = 2.53%
TOTAL AREA = 3.73 ACRES

BASIS OF BEARINGS

GROUND COORDINATES SHOWN ARE BASED ON US STATE PLANE 1983, WYOMING STATE PLANE EAST FIPZONE 4901 WY E
TO CONVERT TO STATE PLANE COORDINATES ADD 100,000 FT TO THE NORTHING AND 500,000 FT TO THE EASTING AND MULTIPLY BY A PROJECT SCALE FACTOR OF 0.99966591765.
EXAMPLE POB
GROUND NORTHING = 140,810.15
GROUND EASTING = 277,801.14
STATE PLANE N = (140,810.15+100000)*SF = 240,729.70
STATE PLANE E = (277,801.14+500000)*SF = 777,541.29

ORIGINAL FIELD SURVEY BY: AVI PC

APPROVALS

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, THIS ____ DAY OF _____, 20__.

MAYOR CITY CLERK

CERTIFICATE OF SURVEYOR

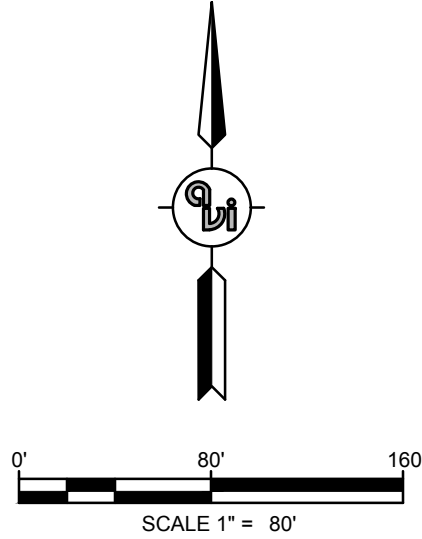
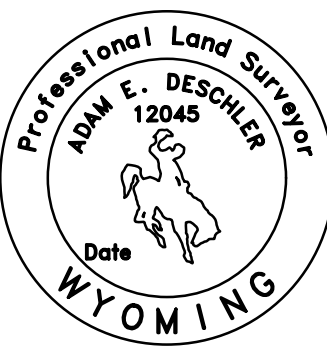
I, ADAM E. DESCHLER, A PROFESSIONAL LAND SURVEYOR LICENSED IN THE STATE OF WYOMING DO HEREBY CERTIFY THAT THIS ANNEXATION MAP WAS PREPARED FROM THE RECORDS AND FIELD NOTES OF A SURVEY CONDUCTED BY ME OR UNDER MY DIRECT SUPERVISION AND THAT ALL DIMENSIONS AND OTHER DETAILS ARE CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

NOTES:

- FEMA FLOODPLAIN IS NOT APPLICABLE TO THIS MAP

ZONING:

CURRENT ZONING : COUNTY, MU, LR
PROPOSED ZONING : CITY, LR, MUB, CB



ANNEXATION MAP FOR MEADOWLARK ESTATES 2ND FILING
A REPLAT OF TRACT 1 AND A PORTION OF TRACTS 2 - 9 OF MEADOWLARK ESTATES AND BEING SITUATED IN A PORTION OF THE SW¼ OF SECTION 24, T.14N., R.66W., 6th P.M., LARAMIE COUNTY, WYOMING
PREPARED APRIL 2021

DATE	
REVISION	
NO.	
PREPARED FOR: PKT DEVELOPMENT 9440 KENTUCKY ST CHEYENNE, WY 82009	
PROJECT:	MEADOWLARK ESTATES
	ANNEXATION MAP
DRAWING TITLE:	
307.637.6017 1103 OLD TOWN LANE, SUITE 101 CHEYENNE, WY 82009 AVI@AVIPC.COM	
DATE:	Jul 20, 2021
DRAWN BY:	JW
DESIGNED BY:	JW
CHECKED BY:	AD
JOB NO.:	4469
DRAWING NO.	1 OF 1